ALVIN STUDIO
& COURTYARD

CLIENT RELEASE OF LIABILITY — WAIVER AND VENUE RENTAL AGREEMENT

Booking ref: [ACD-____]

2470 Alvin Ave., Ste. 80, San Jose, CA 95121 · 408-408-1654 · info@tangointime.com

[MANAGEMENT DECISION REQUIRED — confirm contact email / payment email belongs to the ACD entity]

This Agreement is entered into by and between ***[Legal Entity Name]*** *, d/b/a Alvin Studio & Courtyard ("Venue"), and the undersigned client ("Client") as of the signature date below.* [MANAGEMENT DECISION REQUIRED — name the ACD contracting entity]

[CALIFORNIA COUNSEL REVIEW — entity & payee]

EVENT DETAILS

EVENT DATE _____ EVENT TYPE _____

SET-UP _____ EVENT TIME _____ LOAD-OUT _____

CLIENT NAME _____ PHONE _____

EMAIL _____ EXPECTED GUESTS _____

APPROVED AREAS

☐ Indoor only ☐ Courtyard included ☐ Other: _____

1. ASSUMPTION OF RISK

Client understands that events may involve dancing, food, alcohol if approved, vendors, entertainment, equipment, loading, sound, lighting and social activity. Client voluntarily assumes the ordinary risks connected to the event, Client's guests and Client's vendors.

2. RELEASE OF LIABILITY

To the fullest extent permitted by law, Client releases Venue, its owners, managers, employees, agents, contractors, landlord and affiliates from claims arising from the event, except rights that cannot be waived by law.

[CALIFORNIA COUNSEL REVIEW — consider adding the §1542 waiver and the gross-negligence/willful carve-out used in the CPH agreement]

3. INDEMNIFICATION

Client will defend and indemnify Venue and its representatives from claims, losses, damages, injuries, fines, costs and attorney fees caused by Client, guests, vendors, invitees or Client's breach of this Agreement.

4. COMPLIANCE WITH LAWS AND VENUE POLICIES

CLIENT INITIALS _____

- No smoking or vaping except in a written-approved area.
- No illegal drugs, weapons, fighting, harassment, unsafe conduct or blocked exits.
- No gambling, betting or wagering anywhere on the property.
- No firecrackers, fireworks, sparklers or pyrotechnics. No open flames, candles, fog, haze, glitter or confetti unless Venue approves in writing.
- No pets or animals except service animals required by law.
- Do not tamper with alarms, cameras, smoke detectors, sprinklers, climate controls, AV, security devices or fire equipment.

5. ALCOHOL POLICY

CLIENT INITIALS _____

Alcohol is allowed only with Venue's written approval. Venue does not sell, furnish or serve alcohol unless a signed add-on says otherwise. Client is responsible for lawful service — no service to minors or visibly intoxicated persons, and licensed or authorized servers where required. Open alcoholic beverages are permitted only within designated, approved venue/courtyard areas and are prohibited in the parking lot and all other areas.

- Venue may require approved security, bartender, caterer, insurance, permits or vendor certificates. If alcohol rules are violated, Venue may stop service or end the event without refund.
- Where alcohol is served, licensed security of [ratio] is required; no sale/cash bar/ticketed drinks unless the caterer holds a valid California ABC catering license (copy to Venue at least 10 days before). [RECOMMENDED ADDITION — not in the current ACD agreement; mirrors CPH] [MANAGEMENT DECISION — set ACD guard ratio] [COUNSEL — ABC pathway]

6. FOOD, VENDORS, AND PRODUCTION

Food, catering, food trucks, DJs, performers, rentals, décor, production and outside equipment must be disclosed and approved before the event. Vendors must follow health, fire, sanitation, permit, insurance, loading, power and noise rules.

[RECOMMENDED ADDITION — not in current ACD agreement] Caterers/food trucks must hold a current Santa Clara County health permit (copy at least 10 days before); every vendor must carry liability insurance and provide a certificate at least 30 days before. Client is responsible for its vendors.

7. ACCESS, CAPACITY, NOISE, AND OVERTIME

- Your booked time includes load-in, setup, event, cleanup, breakdown and load-out.
- No early access or late stay without written approval. Overtime is billed at [$____] per [hour].
  [MANAGEMENT DECISION REQUIRED — supply ACD overtime rate & increment]
- Guest count may not exceed legal occupancy or Venue-approved capacity, whichever is lower. Indoor up to 100; courtyard adds up to [+__].
  [VERIFY — confirm combined occupant load with the fire authority before advertising]
- Courtyard use and outdoor amplified sound require written approval and may be reduced, stopped or restricted; a cutoff time of [time] applies. Weather contingency / indoor backup: [terms]. [RECOMMENDED ADDITION — courtyard/weather/cutoff terms]

8. DAMAGES

Client is responsible for damage, stains, spills, missing items, clogged plumbing, excessive cleaning, trash, overtime, unpaid charges, fines and property loss caused by Client, guests, vendors or invitees. Venue may deduct documented amounts from any security deposit held or invoice the Client and will send an itemized statement within 14 days after the event; any security deposit is security only and does not limit what Client owes. Venue is not responsible for lost or stolen property. [RECOMMENDED ADDITION — itemized-statement & deposit-return language from CPH]

[MANAGEMENT CONFIRMATION REQUIRED — the $500 reservation deposit is credited to rent and is NOT a security deposit; confirm whether a separate security/damage deposit is collected]

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9. RIGHT TO TERMINATE EVENT FOR SAFETY AND COMPLIANCE

CLIENT INITIALS _____

Venue, security, police, fire officials or authorities may deny entry, remove persons, stop alcohol service, reduce sound, close areas, suspend or end the event for safety, compliance, property protection, non-payment, illegal activity, intoxication, violence, damage, capacity issues or material breach. If ended for breach, no refund is owed. [CALIFORNIA COUNSEL REVIEW — proportionality of "no refund"]

10. PHOTO / VIDEO RELEASE

☐ I authorize Venue to use event photos/video for marketing. ☐ I do NOT authorize marketing use.

If neither box is checked, Venue will not use images for marketing. This does not restrict security footage, incident documentation or legally required records.

[RECOMMENDED ADDITION — add CPH's "non-identifying images only / written consent for identifiable guests" wording]

11. QUOTE, PAYMENT, CANCELLATION & REFUND

CLIENT INITIALS _____

The signed quote, invoice or booking summary is incorporated into this Agreement. A booking is confirmed only after Venue receives the signed Agreement and the initial reservation deposit of **$500**. Changes require Venue's written approval.

Initial reservation deposit — credited to rent. The $500 deposit secures your event date and is **credited toward the total rental amount** in the approved quotation. It is not an additional charge; it is deducted from the total due in the payment summary below. It is not a security deposit and does not convert into one.

Cancellation of the reservation deposit. Cancellation must be in writing and takes effect when Venue receives it. The 14-day period begins on the date the deposit is paid.

- **Within the first 14 calendar days:** full refund of the $500 deposit — **$500 refunded**.
- **After the first 14 calendar days:** 20% of the deposit is refunded **($100)** and Venue retains 80% **($400)**, subject to the final approved agreement and applicable law. `[CALIFORNIA LEGAL COUNSEL REVIEW REQUIRED — deposit retention as liquidated damages, Civ. Code §1671]`

Additional payments. The treatment on cancellation of any payments beyond the initial reservation deposit is not set in this draft. `[MANAGEMENT CONFIRMATION REQUIRED]` `[CALIFORNIA LEGAL COUNSEL REVIEW REQUIRED]`

Refund processing & accounting. Refund timing is not stated as a binding deadline until approved `[MANAGEMENT CONFIRMATION REQUIRED]`. Every cancellation is reviewed individually to confirm payments received, refunds already issued, remaining refund obligations and amounts retained; retained amounts are not automatically classified as profit.

Rescheduling / date change. Terms not set in this draft. `[MANAGEMENT CONFIRMATION REQUIRED]`

Quoted venue rental	$ `[____]`
Cleaning fee	$ `[____]`
Security: $ ___ / hr × ___ hrs	$ `[____]`
Courtyard add-on ☐ included `[fee]`	$ `[____]`
Package add-ons `[list]`	$ `[____]`
Other approved fees `[list]`	$ `[____]`
Discounts	$ (`[____]`)
Applicable CA sales tax (taxable items only) `[MANAGEMENT CONFIRMATION REQUIRED — per approved tax policy]`	$ `[____]`
Quoted rental total	**$ `[____]`**
Less: initial reservation deposit paid (credited to rental)	– $ 500.00
Remaining balance due — by `[date]` `[MGMT CONFIRM]`	**$ `[____]`**

Select payment type: ☐ Cash ☐ Check ☐ Zelle ☐ Credit Card (+ `[__]` % fee) ☐ Other: _____ `[CALIFORNIA LEGAL COUNSEL REVIEW REQUIRED — surcharge wording]`

Make checks payable to: `[Legal Entity Name]` `[MANAGEMENT CONFIRMATION REQUIRED — name the ACD entity]` · Zelle / payment email: info@tangointime.com `[MANAGEMENT CONFIRMATION REQUIRED — route to the ACD entity's account]`

12. INSURANCE

`[RECOMMENDED ADDITION — THE CURRENT ACD AGREEMENT HAS NO INSURANCE SECTION]`

Client must carry event liability insurance of at least `[limits]`, plus host liquor liability of `[limit]` if alcohol is served; `[ACD entity]` and its landlord named additional insureds; certificate due at least 30 days before. `[MANAGEMENT DECISION — set ACD limits; do not auto-copy CPH]`

13. ACCESSIBILITY (CIVIL CODE § 1938)

`[RECOMMENDED ADDITION — MISSING FROM CURRENT ACD AGREEMENT; §1938 DISCLOSURE IS MANDATORY]`

Check one, only after the CASp status of 2470 Alvin Ave., Ste. 80 is verified: `[VERIFY]`

☐ Not inspected by a CASp. ☐ Inspected — meets standards. ☐ Inspected — does not meet.

14. FORCE MAJEURE & VENUE-INITIATED CANCELLATION

`[RECOMMENDED ADDITION — MISSING FROM CURRENT ACD AGREEMENT]`

If a circumstance beyond either party's control makes it illegal or impossible to provide or use the facilities, either party may terminate on written notice within 10 days of learning of the basis; primary remedy is credit/reschedule. If Venue cancels for a reason not caused by Client, Client receives a full refund and help finding an alternative. `[COUNSEL]`

15. GENERAL

`[RECOMMENDED ADDITION — MISSING GOVERNING-LAW / DISPUTE TERMS IN CURRENT ACD AGREEMENT]`

California law applies; mediation in Santa Clara County before suit; venue Santa Clara County Superior Court; prevailing party may recover attorney fees; entire agreement; severability; Venue's total responsibility limited to amounts paid except where not limited by law. `[COUNSEL]`

16. ACKNOWLEDGMENT & SIGNATURES

CLIENT INITIALS _____

Client confirms they have read and understand this Agreement, including the waiver, release, indemnity, payment terms and Venue rules, and is responsible for guests, invitees, vendors and service providers. The signer is at least 18 (21 if alcohol will be served).

CLIENT SIGNATURE & DATE	VENUE REPRESENTATIVE & DATE
PRINTED NAME	PRINTED NAME & TITLE